STANDARD OPERATING PROCEDURE			G-10220
SARPY COUNTY SHERIFF'S OFFICE PAPILLION * NEBRASKA **GREG LONDON** **SHERIFF**	DATE ISSUED **05/02/23**	DATE REVISED	DATE REVIEWED 02/02/25
	APPROVED: *GREG LONDON*		
CHAPTER TITLE GENERAL	RESOURCES CALEA 42.1.6		
SUBJECT EXCULPATORY EVIDENCE	CROSS REFERENCE		

I. Purpose:

The purpose of this policy is to establish the guidelines to provide information to prosecutors should the agency become aware of previously unknown or unrecognized exculpatory evidence.

II. Policy:

It is the policy of the Sarpy County Sheriff's Office to notify the prosecutor should the agency become aware of any potential exculpatory evidence.

III. Definitions:

A. Exculpatory Evidence: Evidence that is favorable to the accused; is material to the guilt, innocence, or punishment of the accused; and/or may impact the credibility of a government witness, including a law enforcement officer or other agency employee. Impeachment material is included in the disclosure requirements for prosecutors, however not intended to be for typical investigations which may or may not be prosecuted.

B. Duty to Disclose: The decision of Brady v. Maryland (1963) places an affirmative constitutional duty of a prosecutor to disclose exculpatory evidence to a defendant. This duty has been extended to law enforcement agencies through case law, requiring law enforcement agencies to notify the prosecutor of any potential exculpatory information.

C. Impeachment Evidence: Evidence that might be used to impeach a witness is exculpatory evidence and must be disclosed to the defense by the prosecutor. Impeachment evidence is evidence that demonstrates that a witness is biased or prejudiced against a party, has some other motive to fabricate testimony, has a poor reputation for truthfulness or has past specific incidents that are probative of the witness' truthfulness or untruthfulness. Prior inconsistent statements are

impeachment evidence. Impeachment evidence that is merely cumulative (i.e., duplicative to evidence already provided or presented) or impeaches on a collateral issue need not be disclosed.

IV. Procedure:

A. Defendants who are subject to, or experiencing, a significant, ongoing deprivation of liberty:

1. During typical or general investigations, it is imperative that all relevant information gleaned from the current investigation is provided to prosecutors. However, should the agency become aware of previously unknown or unrecognized exculpatory evidence for which a defendant is subject to, or is experiencing, a significant and on-going deprivation of liberty, the employee involved shall adhere to the following procedures without unnecessary delay.

a) Make Command notification
b) Notify the prosecutor's office
c) Collect all newly discovered evidence and prepare a report (provide the report to the prosecutor's office)
d) Notify the Evidence/Property Unit of the case status

B. Post-conviction investigations: Post-conviction investigations involving claims of omitted exculpatory evidence must be thoroughly documented and include details related to when information was received, who received it, and if or when it was provided to prosecuting authorities. Post-conviction investigations where claims of omitted exculpatory evidence are the result of the initial investigation by the agency should not be conducted by investigative personnel involved in the initial investigation.